

NON-DISCLOSURE AGREEMENT

THIS NON- DISCLOSURE AGREEMENT made as of this ____ day of _____ 2026 **BY
AND BETWEEN**

Biz-Tech Analytics Pvt. Ltd., a Private Limited Company incorporated with its office at 808 Chiranjiv Tower, 43 Nehru Place, New Delhi - 110019, India (the “Company”, “Our”, “First Party”)

AND

..... (the “Second Party”; each a “party” and together, the “parties”). WHEREAS the First Party is employing the Second Party as a Freelancer (the “Transaction”);

AND WHEREAS, as a condition of permitting such exchange and review, the parties have required each other to enter into this Agreement and abide by its terms

NOW, THEREFORE, in consideration of the premises set forth herein and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties hereto agree as follows:

1. All information, in any form, supplied to one party (the “Receiving Party”) by, or at the direction of, the other party (the “Furnishing Party”) relating to the Transaction, including any copies, excerpts, summaries, analysis however conveyed; or notes thereof generated by the Receiving Party (collectively, the “**Information**”) whether before or after the date of this Agreement, will be treated as confidential as provided in this Agreement. The information furnished by entities with which the First Party is or has conducted business with (Our “Customers/Clients”) is also covered under this agreement.
2. The Receiving Party acknowledges that Information may be stored in printed or electromagnetic forms and may be furnished to it by the Furnishing Party or at the direction of the Furnishing Party. Information may relate to, among other things, the Furnishing Party’s business relationships, methods of transacting business, current or future cost or pricing information, the Furnishing Party’s customers, subcontractors, and dealers, the Furnishing Party’s operational and data processing capabilities, systems, software and hardware and the documentation thereof, and the terms or conditions of this Agreement or the Transaction
3. All Information: (a) shall remain the property of the Furnishing Party; (b) shall be treated as confidential by the Receiving Party, taking such action as shall be necessary or desirable to preserve and protect the confidentiality of the Information and in any event using means not less than those used to protect its own confidential information (and in any event, reasonable protection as listed below); (c) shall be used solely for purposes of evaluating the Transaction as provided in this Agreement, and for no other purpose; (d) Parties shall limit access to Confidential Information to individuals on a strictly need-to-know basis, involving only those who are carrying out duties related to the Company and its business. Individuals under the Second Party’s command (affiliates, agents, consultants, representatives and other employees (the “Authorized Persons”)) are bound by and shall comply with the terms of this Agreement. In the event that the Receiving Party or any of its Authorized Persons becomes legally compelled (including, without limitation, by law, rule, regulation, stock exchange or governmental regulatory or administrative or similar agency as part of a judicial or administrative proceeding (including, without limitation, by deposition, interrogatory, request for information or documents, subpoena, civil or criminal investigative demand or otherwise)) to disclose

any of the Information, the Receiving Party shall provide the Furnishing Party with immediate written notice of such requirement so that the Furnishing Party may seek a protective order or other appropriate remedy or waive compliance with this paragraph.

4. Confidentiality.

4.1 Definition of Confidential Information. "Confidential Information" means (a) any technical and non-technical information related to the First Party and their Client/Customers business and current, future and proposed products and services, including for example and without limitation, Deliverables, Property (as defined in Section 5.4), and information concerning research, development, design details and specifications, financial information, procurement requirements, engineering and manufacturing information, customer lists, business forecasts, sales information, marketing plans and business plans, in each case whether or not marked as "confidential" or "proprietary" and (b) any information that the First Party and their Clients/Customers have received from others that may be made known to Parties and that First Party or their Client/Customers are obligated to treat as confidential or proprietary, whether or not marked as "confidential" or "proprietary."

4.2 Non-disclosure and Non-use Obligations. Except as permitted in this Section, Parties will not (i) use any Confidential Information or (ii) disseminate or in any way disclose the Confidential Information to any person, firm, business, or governmental agency or department. Parties may use the Confidential Information solely to perform Statement(s) of Work for the benefit of the First Party and their Clients/Customers. Parties shall treat all Confidential Information with the same degree of care as Parties accords to Parties' own confidential information, but in no case shall Parties use less than reasonable care. The Second Party shall disclose Confidential Information only to those Authorized Persons who have a need to know the information as necessary for the Second Party to perform this Agreement. The Second Party certifies that each of its Authorized Persons will have agreed, either as a condition of employment or in order to obtain the Confidential Information, to be bound by terms and conditions at least as protective as those terms and conditions applicable to Parties under this Agreement. The Second Party shall immediately give notice to the First Party of any unauthorized use or disclosure of the Confidential Information. Parties shall assist the First Party in remedying any unauthorized use or disclosure of the Confidential Information. The Second Party agrees not to communicate any information to the First Party and their Client/Customers in violation of the proprietary rights of any third party.

4.3 Exclusions from Non-disclosure and Non-use Obligations. Parties' obligations under Section 4.2 do not apply to any Confidential Information that Parties can demonstrate was (a) information in the public domain at the time that it was provided by the Furnishing Party or which subsequently came into the public domain other than as a result of breach of this Agreement or any confidentiality obligations; (b) information obtained from a third party unaffiliated with the Furnishing Party (provided such party was not bound by confidentiality agreements with the Furnishing Party and was lawfully entitled to disclose such information); (c) information independently developed by the Receiving Party without reference to the Information; (d) information in the possession of the Receiving Party prior to its disclosure by the Furnishing Party to the Receiving Party; or (e) information the parties agree in writing is not Information for the purpose of this Agreement. A disclosure of any Confidential Information by Parties (a) in response to a valid order by a court or other governmental body or (b) as otherwise required by law will not be considered to be a breach of this Agreement or a waiver of confidentiality for other purposes; provided, however, that Parties provides prompt prior written notice thereof to First Party to enable the First Party and their Clients/

Customers to seek a protective order or otherwise prevent the disclosure.

4.4 Ownership and Return of Confidential Information and Property. All Confidential Information and any materials and items (including, without limitation, software, equipment, tools, artwork, documents, drawings, papers, diskettes, tapes, models, apparatus, sketches, designs and lists) that the First Party and their Client/Customers furnishes to the Second Party, whether delivered to the Second Party by the First Party and their Client/Customers or made by Parties in the performance of services under this Agreement and whether or not they contain or disclose Confidential Information (collectively, the First Party's Property"), are the sole and exclusive property of the First Party and their suppliers and Clients/Customers. The Second Party agrees to keep the First Party's Property at Second Party's premises unless otherwise permitted in writing by the First Party. Within five (5) days after any request by the First Party, the Second Party shall destroy or deliver to the First Party, (a) all the First Party's Property and (b) all materials and items in the Second Party's possession or control that contain or disclose any Confidential Information. The Second Party will provide First Party a written certification of the Second Party's compliance with obligations under this Section

5. Prior to disclosing the Information, the Receiving Party shall require each person who receives the Information to be cognizant of and to comply with the terms and conditions of this Agreement. The Receiving Party is authorized to share Information with their Authorized Persons; however, if any Authorized Persons of the Receiving Party receives Information, such Authorized Persons shall be responsible for compliance with the terms and conditions of this Agreement and the Receiving Party shall also be responsible and liable for compliance by its Authorized Person(s). Additionally, the Second Party must inform the First Party about the same in writing

6. Intellectual Property.

6.1 "Innovations" and "Deliverables" Definitions. In this Agreement, "Innovations" means all intellectual property rights, discoveries, designs, developments, improvements, inventions (whether or not protectable under patent laws), works of authorship, information fixed in any tangible medium of expression (whether or not protectable under copyright laws), trade secrets, know-how, ideas (whether or not protectable under trade secret laws), mask works, trademarks, service marks, trade names and trade dress. "Deliverables" means Innovations that Parties, solely or jointly with others, create, derive, conceive, develop, make or reduce to practice under a Statement of Work.

6.2 Disclosure and Assignment of Deliverables. Second Party agrees to maintain adequate and current records of all Deliverables, which records shall be and remain the property of the First Party and their Clients/Customers. Second Party agrees to promptly disclose and describe to First Party all Deliverables. The Second Party represents, warrants and covenants that all Deliverables shall be free and clear of any liens and encumbrances.

7. The First Party reserve the right to limit access to their respective premises, facilities, equipment, contractors, data and other materials, information and personnel. All representatives of Second Party and anyone acting on its behalf shall comply with all of the First Party's applicable security regulations to the extent disclosed to the Receiving Party in writing

8. The Second Party will not use or permit the use of the First Party's names, logos, trademarks or other identifying data, or otherwise discuss or make reference to such other party, in any notices to third parties, any promotional or marketing material or in any press release or other public announcement or advertisement, however characterized, without such First Party's prior written consent

9. Neither party makes any representation or warranty, express or implied, with respect to the

accuracy or completeness of any Information provided hereunder. Neither party shall be liable to the other hereunder for amounts representing loss of profits, loss of business or indirect, consequential nor do punitive damages of the other party in connection with the provision or use of Information hereunder, except to the extent that such provision or use constitutes a breach of this Agreement

10. This Agreement shall terminate on the earlier occurrence of: (a) the execution of a definitive agreement governing the Transaction which includes confidentiality provisions substantially similar to those set forth herein or which expressly supersedes this Agreement (a "Definitive Agreement"); or (b) at the termination of the Second Party's employment by the First Party. Upon termination without a Definitive Agreement, the Second Party shall, at its option and own expense, return or destroy all Information, and no information shall be stored by the Second Party in any form. Within Ten (10) days after the request of the First Party, the Second Party shall certify in writing that all information has been so returned or destroyed. Notwithstanding the return or destruction of the Information or the termination of this Agreement without a Definitive Agreement, the parties shall continue to be bound by their obligations of confidentiality hereunder. The termination of this Agreement shall not prejudice any obligations, rights, or remedies of either of the parties.

11. Indemnification. Parties will indemnify and hold harmless the First Party and their Clients/Customers from and against any and all third party claims, suits, actions, demands and proceedings and all losses, costs and liabilities related thereto arising out of or related to (i) an allegation that any item, material and other deliverable delivered by Parties under this Agreement infringes any intellectual property rights or publicity rights of a third party; (ii) any breach of the warranties provided in Section 4; or (iii) any negligence by Parties or any other act or omission of Parties, including without limitation any breach of this Agreement by Parties.

12. Limitation of Liability.

12.1. In no event shall the First Party and their Clients/Customers be liable to the Second Party or to any third party for any loss of use, revenue or profit or loss of data or diminution in value, or for any consequential, incidental, indirect, exemplary, special or punitive damages whether arising out of breach of contract, tort (including negligence) or otherwise, regardless of whether such damage was foreseeable and whether or not the First Party and their Clients/Customers have been advised of the possibility of such damages, and notwithstanding the failure of any agreed or other remedy of its essential purpose.

12.2. In no event the First Party and their Clients/Customers aggregate liability arising out of or related to this agreement, whether arising out of or related to breach of contract, tort (including negligence) or otherwise, exceed the aggregate amounts paid or payable to the Second Party pursuant to the applicable statement of work in the 6 month period preceding the event giving rise to the claim.

13. Performance Agreement and Release.

13.1. Contractor hereby grants Company, and its employees and agents, the right to make, use and publish in whole or in part any recorded footage in which Contractor's name, likeness, image, and/or voice may be included (hereinafter "Recordings") whether recorded on or transferred to videotape, film, slides, photographs, audiotape, digital format, or other media now known or hereafter developed. This includes, without limitation, the right to edit, mix, duplicate, use, or reuse Recordings as it may desire without restriction as to changes or

alterations. Company shall have complete ownership of the Recordings in which Contractor and/or their performance or contribution appears.

13.2. The contractor also grants Company the right to distribute, display, broadcast, exhibit, and market any of said Recordings, either alone or as part of its finished productions, for commercial or non-commercial purposes as the Company or its employees and agents may determine. This includes the right to use said Recordings for promotion or publicizing any of these uses.

13.3. The contractor hereby waives any and all rights that they may have to inspect or approve the finished product or printed matter that may be used in connection therewith.

13.4. The contractor expressly releases the Company and all persons acting under its permission or authority from any claim or liability arising out of or in any way connected with the above uses and representations including any and all claims for defamation or copyright infringement. The contractor is over the age of eighteen and has read the above release, and fully understand its contents.

14. Entire Agreement. This Agreement, including and together with any related Statements of Work, exhibits, schedules, attachments and appendices, constitutes the sole and entire agreement of the Parties with respect to the subject matter contained herein, and supersedes all prior and contemporaneous understandings, agreements, representations and warranties, both written and oral, regarding such subject matter. The parties acknowledge and agree that if there is any conflict between the terms and conditions of this Agreement and the terms and conditions of any Statement of Work, the terms and conditions of this Agreement shall supersede and control

15. Severability. If any term or provision of this Agreement is found by a court of competent jurisdiction to be invalid, illegal or unenforceable in any jurisdiction, such invalidity, illegality or unenforceability shall not affect any other term or provision of this Agreement or invalidate or render unenforceable such term or provision in any other jurisdiction. Any invalid or unenforceable provision of this Agreement shall be replaced with a provision that is valid and enforceable and most nearly reflects the original intent of the unenforceable provision.

16. Amendments. No amendment to or modification of this Agreement is effective unless it is in writing and signed by each Party.

17. Waiver. No waiver by any Party of any of the provisions of this Agreement shall be effective unless explicitly set forth in writing and signed by the Party so waiving. Except as otherwise set forth in this Agreement, no failure to exercise, or delay in exercising any right, remedy, power or privilege arising from this Agreement shall operate or be construed as a waiver thereof, nor shall any single or partial exercise of any right, remedy, power or privilege hereunder preclude any other or further exercise thereof or the exercise of any other right, remedy, power or privilege.

18. Successors and Assigns. The Second Party shall not assign its rights or delegate any performance under this Agreement without the prior written consent of the First Party. For the avoidance of doubt, the Second Party may not subcontract performance of any services under this Agreement to any other contractor or consultant without the First Party's prior written consent. All assignments of rights by Parties are prohibited under this paragraph, whether they are voluntary or involuntary, by merger, consolidation, dissolution, operation of law, or any other manner. For purposes of this paragraph, (i) a "change of control" is deemed an assignment of rights; and (ii) "merger" refers to any merger in which Parties participates, regardless of whether it is the surviving or disappearing entity.

Any purported assignment of rights or delegation of performance in violation of this paragraph is void. This Agreement will be for the benefit of the First Party's successors and assigns, and will be binding on the Second Party's permitted assignees.

19. Injunctive Relief. The Second Party's obligations under this Agreement are of a unique character that gives them particular value; The Second Party's breach of any of these obligations will cause irreparable and continuing damage to the First Party for which money damages are insufficient, and the First Party is entitled to injunctive relief, a decree for specific performance, and all other relief as may be proper (including money damages if appropriate).

20. No Third-Party Beneficiaries. Save for any related corporation (as defined relevant Governing Act/Law), this Agreement benefits solely the Parties to this Agreement and their respective permitted successors and assignees, and nothing in this Agreement, express or implied, confers on any other Person any legal or equitable right, benefit or remedy of any nature whatsoever under or by reason of this Agreement or under the Contracts (Rights of Third Parties) Act.

21. This Agreement shall be governed by the laws of India. Both parties irrevocably submit to the exclusive jurisdiction of the Courts in New Delhi, for any action or proceeding regarding this Agreement. Any dispute or claim arising out of or in connection herewith, or the breach, termination, or invalidity thereof, shall be settled by arbitration in accordance with the provisions of Procedure of the Indian Arbitration & Conciliation Act, 1996 and any other relevant Governing Acts, including any amendments thereof. The arbitration tribunal shall be composed of a sole arbitrator, and such arbitrator shall be appointed mutually by the Parties. The place of arbitration shall be New Delhi, India, and the arbitration proceedings shall take place in the English language.

22. Non-Binding Arbitration. All claims and disputes arising under or relating to this Agreement can be settled by a non-binding arbitration in New Delhi, India, or another location mutually agreeable to the Parties. An award of arbitration may be confirmed in a court of competent jurisdiction.

23. Counterparts. This Agreement may be executed in counterparts, each of which is deemed an original, but all of which together are deemed to be one and the same agreement. Notwithstanding anything to the contrary in Section 11, a signed copy of this Agreement delivered by facsimile, email or other means of electronic transmission is deemed to have the same legal effect as delivery of an original signed copy of this Agreement.

24. A person who is not a party to this Agreement shall have no right under the relevant governing laws to enforce any term of this Agreement.

25. The Second Party recognizes that a breach of this Agreement may cause irreparable harm to the First Party and that actual damages may be difficult to ascertain and in any event, may be inadequate. Accordingly, the Second Party agrees that in the event of such breach, the First Party may be entitled to injunctive relief in addition to such other legal or equitable remedies as may be available. The Second Party is bound by this Agreement to notify the First Party in the event of a breach of agreement involving the dissemination of Confidential Information, either by the Second Party or any of its Authorized Persons or a third party and will do everything possible to help the First Party regain possession of the Confidential Information.

26. The Agreement does not constitute a contract of employment, nor does it guarantee continuing employment for the party.

27. The Agreement does not create a partnership or joint venture between the parties. Any financial

arrangements made between both Parties shall not be included in this Agreement but must be agreed to in writing in a separate document

28. In a dispute arising out of or in relation to this Agreement, the prevailing party shall have the right to collect from the other party its reasonable attorney fees, costs and necessary expenditures.

IN WITNESS WHEREOF, the Parties hereto agree to the terms of this Agreement and signed on the dates written below.

Party 1: Biz-Tech Analytics Pvt. Ltd. Signature _____ **Party**

2: Name: _____ **Signature:** _____ **Date:**